



U.S. Department
of Transportation

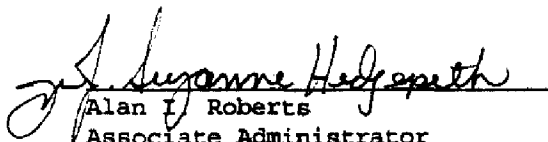
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10351 (EXTENSION)
ORIGINAL May 18, 1992

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10351 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to October 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV 30 1994

(DATE)

Dist: PHWA

EXEMPTION HOLDER

APPLICATION DATE

Warren Petroleum Company/Division of Chevron USA
Tulsa, OK

October 12, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 10351

1. Warren Petroleum Company, Tulsa, OK, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to transport or offer for transportation in commerce packages prescribed herein of the hazardous materials described in paragraph 3 below subject to the limitations and special requirements specified herein. This exemption authorizes the use of insulated MC-331 cargo tanks and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on the application of HLA Engineers, Inc., on behalf of Warren Petroleum Company dated February 28, 1990 submitted in accordance with 49 CFR 107.103, and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Liquid ethylene classed as a flammable gas.

4. PROPER SHIPPING NAME (49 CFR 172.101). Ethylene, refrigerated liquid (cryogenic liquid).

5. REGULATION AFFECTED. 49 CFR 173.318, 178.337.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packagings prescribed are eight (8) non-vacuum, urethane-foam insulated (4 inches thick), DOT Specification MC-331 cargo tanks bearing serial numbers 81053 through 81056 and 81441 through 81444. Each cargo tank is designed and constructed in accordance with Section VIII Division I of the ASME Code with a design pressure of 312 PSIG and a test pressure of 468 PSIG.

a. Each cargo tank conforms with Mississippi Tank Company and HLA Engineering drawings on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA), and to DOT Specification MC 331 (49 CFR 178.337), except for specification marking. No new construction is authorized.

b. Design temperature range must be +100°F to - 155°F for the cargo tank and the suspension/support box materials. The suspension shall be constructed according to HLA drawings D-T822E1-01 through D-T822E1-03 dated 6-31-89 on file with OHMEA.

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c. Water capacity is 8,225 gallons for the cargo tank. Tank material is SA 240 type 304 stainless steel for the cargo tank and outer jacket.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Each cargo tank must be reinspected and retested once every 5 years in accordance with 49 CFR 173.33(e) at a pressure (in PSIG) of 14.7 plus one and one-half times the sum of the design pressure plus the static head as prescribed for MC 331 specification cargo tanks.

c. Each cargo tank must be plainly marked "DOT-E 10351", on the right side near the middle, in letters at least two inches high on a contrasting background. The cargo tank, when used in ethylene service, must be marked "One-way travel time ____ Hours" or "OWTT ____ Hours" in letters at least 2 inches high near the "DOT-E 10351" marking. The proper OWTT must be determined using the formulas found in subparagraph d.(1) of this paragraph.

d. Each cargo tank must be prepared and shipped as required in 49 CFR 173.315 or 173.318, as applicable for the lading. Shipments of liquid ethylene must conform with the following:

(1) The OWTT must be determined by the formula:

$$OWTT = (MRHT - 24)/2; \text{for } MRHT \text{ less than } 72 \text{ hours.}$$

$$OWTT = MRHT - 48; \text{for } MRHT \text{ of } 72 \text{ or more hours.}$$

(2) The provisions of 49 CFR 177.840 apply.

e. No person may transport or offer for transportation a charged cargo tank unless the pressure of the lading is equal to or less than that used to determine the marked rated holding time (MRHT) and the OWTT is equal to or greater than the elapsed time between the start and termination of travel.

f. The actual holding time for each cargo tank must be determined after each shipment. If it is determined that the actual holding time is less than 90 percent of the MRHT of the cargo tank, it may not be refilled until it is restored to its MRHT or the tank is re-marked with the holding time determined by this examination.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. The release of nonflammable gas content is not a reportable incident if the release is through a pressure controlling device set at 25 PSIG or less. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. March 31, 1994.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 18 1992

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FHWA.